

perceived the issue presented there as it did. The appellant sued "in his capacity as a district taxpayer," 330 U. S., at 3, challenging the actions of the Board of Education in passing a resolution providing reimbursement to parents for the cost of transporting their children to parochial schools, and seeking to have that resolution "set aside." Appellant's Establishment Clause claim was precisely that the "statute . . . forced inhabitants to pay taxes to help support and maintain" church schools. *Id.*, at 5. It seems obvious that all the Justices who participated in *Everson* would have agreed with Justice Jackson's succinct statement of the question presented: "Is it constitutional to tax this complainant to pay the cost of carrying pupils to Church schools of one specified denomination?" *Id.*, at 21 (dissenting opinion). Given this view of the issues, could it fairly be doubted that this taxpayer alleged injury in precisely the form that the Establishment Clause sought to make actionable?¹⁶

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In *Flast v. Cohen*, 392 U. S. 83 (1968), federal taxpayers sought to challenge the Department of Health, Education, and Welfare's administration of the Elementary and Second-

the churches through voluntary contributions.'" *Walz v. Tax Comm'n of New York City*, 397 U. S. 664, 690-691 (1970) (BRENNAN, J., concurring) (footnote omitted), quoting Gianella, *Religious Liberty, Nonestablishment, and Doctrinal Development*, pt. 2, 81 Harv. L. Rev. 513, 533 (1968).

Of course, irrespective of the taxpayers' stake in the controversy, in terms of the prohibition on government action imposed by the Establishment Clause, there is also a qualitative difference between a subsidy and an exemption. *Ibid.*

¹⁶Justice Jackson, writing for the Court in *Doremus v. Board of Education*, 342 U. S. 429 (1952), explored the limitations of taxpayer standing under the Establishment Clause. In that case two New Jersey taxpayers challenged a New Jersey law that directed public school teachers to read selected passages from the Bible, seeking a declaratory judgment that such a law violated the Establishment Clause. The Court concluded that the taxpayer lacked standing:

"There is no allegation that this activity is supported by any separate tax